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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 4, 2026

CASE NUMBER

25SMCV00065

MOTION

Motion to Strike Third Amended Complaint

MOVING PARTY

Defendant Jennifer Frisk

OPPOSING PARTY

Plaintiff Michael Maganza

MOTION

This case arises from a vehicle collision involving one vehicle swerving around a UPS vehicle that was double parked into oncoming traffic and colliding with Plaintiff's vehicle. On January 7, 2025, Plaintiff Michael Maganza ("Plaintiff") filed suit against Defendants Jennifer Frisk ("Frisk") and United Parcel Service, Inc. dba UPS ("UPS"). Defendant Diego Lemuz ("Lemuz") was subsequently added as a Defendant in place of Doe 1. The Operative Third Amended Complaint ("3AC") alleges three causes of action for (1) negligence; (2) public nuisance; and (3) CA Vehicle Code § 17150.

Defendant Frisk now moves to strike Plaintiff's allegations of and prayer for punitive damages. Plaintiff opposes the motion and Frisk replies.

ANALYSIS

1. MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).)

On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth."

(*Clauson v. Superior Court*

(1998) 67 Cal.App.4th 1253, 1255.) To

state a prima facie claim for punitive damages, a plaintiff must allege the

elements set forth in the punitive damages statute, Civil Code section 3294. (*College*

Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must

allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1) "Malice" means conduct which is intended

by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2)

“Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ.

Code, § 3294, subd. (c)(1)-(3), emphasis added.)

Further, a plaintiff must assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud or malice. To wit, there is a heightened pleading requirement regarding a claim for punitive damages. (See *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) “When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in defense of an exemplary damage claim, fairness demands that he receive adequate notice of the kind of conduct charged against him.” (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In *Anschutz Entertainment Group, Inc. v. Snapp*, the Court of Appeal noted that the plaintiffs’ assertions related to their claim for punitive damages were “insufficient to meet the specific pleading requirement.” (*Anschutz Entertainment Group, Inc. v. Snapp* (2009) 171 Cal.App.4th 598, 643 [plaintiffs alleged “the conduct of Defendants was intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff’s rights. Plaintiff’s injuries were exacerbated by the malicious conduct of Defendants. Defendants’ conduct justifies an award of exemplary and punitive damages”]; see also *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 [“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim”].)

In *Taylor v. Superior Court*, the California Supreme Court held: “We consider whether punitive damages are recoverable in a personal injury action brought against an intoxicated

driver. As will appear, we have concluded that the act of operating a motor vehicle while intoxicated may constitute an act of "malice" under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences." (Taylor v. Superior Court (1979) 24 Cal.3d 890, 892 [cleaned up].) The California high court further held that "[o]ne who voluntarily commences, and thereafter continues, to consume alcoholic beverages to the point of intoxication, knowing from the outset that he must thereafter operate a motor vehicle demonstrates, in the words of Dean Prosser, "such a conscious and deliberate disregard of the interests of others that his conduct may be called wilful or wanton." (Id. at p. 899.) But the California high court also stated, "Although the circumstances in a particular case may disclose similar wilful or wanton behavior in other forms, ordinarily, routine negligent or even reckless disobedience of traffic laws would not justify an award of punitive damages." (Id. at pp. 899-900 [emphasis added].)

In addition, while leaving the scene of an accident without rendering aid violates the Vehicle Code, it is independently actionable only if the defendant's leaving the scene of the incident was "a proximate cause of further injury or death" beyond the harm resulting from the underlying incident.

(Brooks v. E.J. Willig Truck Transp. Co. (1953) 40 Cal.2d 669.) In particular, the Supreme Court held:

One who negligently injures another and renders him helpless is bound to use reasonable care to prevent any further harm which the actor realizes or should realize threatens the injured person. This duty existed at common law although the accident was caused in part by the contributory negligence of the person who was injured. Sections 4801 and 4822 of the Vehicle Code require an automobile driver who injures another to stop and render aid. This duty is imposed upon the driver whether or not he is responsible for the accident, and a violation gives rise to civil liability if it is a proximate cause of further injury or death. Failure to stop and render aid constitutes negligence as a matter of law, in the absence of a legally sufficient excuse or justification.

(Id. at pp. 678–679, emphasis added [cleaned up]; Karl v. C. A. Reed Lumber Co. (1969) 275 Cal.App.2d 358, 361 ["failure to stop and render aid after an injury-causing accident may constitute an independent wrong irrespective of any legal responsibility for

the original injury”].)

Here, as to Frisk, Plaintiff alleges:

20. At approximately 12:19 p.m. LEMUZ had in violation of CA Vehicle Code section 22500 (prohibited parking) illegally “double parked” the UPS Truck on the northbound side of Dimmick Avenue in front of the property described as 254 Dimmick Avenue, Venice, CA 90291, blocking the northbound side of Dimmick Avenue, a two-lane street. At that same time, Plaintiff had begun executing a right turn onto southbound Dimmick Avenue from the eastbound side of the alley between the properties described as 253 Dimmick Avenue and 251 Dimmick Avenue, Venice, CA 90291. As Plaintiff was executing his right turn from the alley onto southbound Dimmick Avenue, FRISK, who was illegally using her cell phone as a handheld device in violation of CA Vehicle Code section 23123.5 (CA cell phone law) and was looking down at the screen of her phone instead of the road in front of her, drove northbound on Dimmick Avenue from Rose Avenue, approached the rear of the UPS Truck at an unsafe rate of speed and without slowing, illegally in violation of CA Vehicle Code sections 21650 (driving on right side of roadway) and 21751 (passing without sufficient clearance) swerved to the left of the UPS Truck and into oncoming traffic on the southbound side of Dimmick Avenue striking Plaintiff’s vehicle in a “head on” collision.

21. With respect to punitive damages and direct liability against FRISK, at all times relevant hereto, FRISK was aware of the impairment caused by driving while distracted by her cell phone, yet she routinely and repeatedly drove while distracted by her cell phone. FRISK’s level of impairment at the time of the subject collision was equivalent to being drunk while behind the wheel – or worse, driving a vehicle while blindfolded. Prior to the subject collision, FRISK was aware, through public safety campaigns, media coverage, and driver education materials, that distracted driving creates an extreme risk of catastrophic injury or death to others, including Plaintiff. Undeterred by that awareness, FRISK created heightened peril to Plaintiff and others by knowingly and intentionally maneuvering around a double-parked UPS Truck at an unsafe rate of speed, on the wrong side of the roadway, and into oncoming traffic while engaging with her cell phone for an extended period of time. In the moments immediately preceding the subject collision, FRISK consciously diverted her attention away from the roadway while entering an area with obstructed visibility and active traffic

conditions and deliberately continued driving while interacting with her cell phone. FRISK's conduct was not a mere momentary lapse in attention but was an act of willful and deliberate indifference to the probable dangerous and devastating consequences of her conduct. That conduct was especially egregious because, despite knowing that prolonged inattentiveness would likely cause her vehicle to enter opposing traffic and result in a violent head-on collision with another vehicle, she continued driving while interacting with her cell phone. FRISK callously chose to prioritize cell phone use over the safe operation of her vehicle and the rights and safety of others. Had FRISK not been impaired due to her driving while using her cell phone, FRISK would have seen Plaintiff's oncoming vehicle and would not have continued to drive into oncoming traffic and collide head-on with Plaintiff's vehicle. FRISK's conduct constituted malice and/or oppression within the meaning of CA Civil Code section 3294.

22. Therefore, punitive damages in an amount according to proof are necessary to punish FRISK and to make an example out of FRISK to cause deterrence and/or change on a societal level.

[...]

26. The incident alleged above was captured on surveillance video, which is incorporated herein by reference. Upon information and belief, that video constitutes "clear and convincing" evidence that LEMUZ, UPS, and/or FRISK acted with oppression and/or malice within the meaning of CA Civil Code section 3294.

(3AC

¶¶ 20-22, 26 [emphasis added].)

The Court finds that these allegations constitute routine negligent, or possibly even reckless disobedience of traffic laws unrelated to drunk driving or leaving the scene of an accident causing further injury or death to a plaintiff that would warrant the imposition of punitive damages, under applicable authority.

The Court had previously granted Plaintiff leave to amend to allege specific facts that Frisk previously received a citation for unlawful cell phone use while driving to demonstrate Frisk's knowledge of danger and intentional disregard for the dangerous

consequences. Plaintiff has not done so. Instead, Plaintiff merely recharacterizes the existing facts by adding conclusory statements that Plaintiff had prior knowledge yet acted with a conscious disregard for the safety of others. But the underlying facts do not demonstrate any such prior knowledge, nor a deliberate, and continued choice to disregard the safety of others over the course of time. Rather, read in whole and in context, they allege a person suddenly becoming temporarily distracted by an incoming call or text while driving.

Because the 3AC merely alleges that Frisk was unlawfully using her cell phone while driving recklessly at the time of the accident, the Court does not find that the conduct alleged rises above “routine negligent or even reckless disobedience of traffic laws” to establish oppression or malice sufficient to state a claim for punitive damages, as required by Taylor.

2.

LEAVE TO AMEND

A plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that “if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend.” (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiff contends she could allege “further specific facts regarding the duration of Frisk’s cell phone use immediately before the collision, the multiple opportunities she had to stop, slow, or return her

attention to the roadway before entering the lane of oncoming traffic, and other facts revealed through discovery further demonstrating her conscious disregard for the safety of others." The Court does not find these proffered facts sufficient to allege a claim for punitive damages. Further, having given Plaintiff two opportunities already to cure these defects, it appears further leave to amend at this point would be futile.

CONCLUSION AND ORDER

For the reasons stated, the Court grants Frisk's motion and orders Plaintiff's allegations of and request for punitive damages stricken from the Third Amended Complaint without leave to amend, but without prejudice to Plaintiff later moving for leave to amend punitive damages, should she uncover facts in discovery supporting such a claim.

Further, the Court orders Frisk to file and serve an answer to the Third Amended Complaint on or before August 17, 2026.

Frisk shall also provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 4, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court